

25NNCV03495 25NNCV03495

County: los-angeles

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Case Number: 25NNCV03495 Hearing Date: September 18, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION FOR SANCTIONS

Hearing Date: 9/18/26

CASE NO.: 25NNCV03495

CASE NAME: Perla Mageno vs. Dang

Good! Ice Cream Inc.

Moving Party: Plaintiff Perla Mageno

Responding Party: Defendant Dang Good! Ice
Cream Inc.

Notice: Sufficient

Ruling: DENY.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a disability discrimination case.

Plaintiff Perla Mageno (Plaintiff) is a visually impaired individual who brought this action against defendant Dang Good! Ice Cream Inc. (Defendant) for its failure to design, maintain, and operate its website to be accessible and independently usable by Plaintiff and other visually impaired individuals with disability.

On

May 21, 2025, Plaintiff filed a Complaint against Defendant for Violations of the Unruh Civil Rights Act due to this purported failure.

On July 14, 2026, Plaintiff filed the instant motion seeking imposition of sanctions. On September 3, 2026, Defendant filed an opposition. On September 11, 2026, Plaintiff filed a reply.

LEGAL

STANDARD

Code of Civil Procedure section 128.7 authorizes sanctions where a party or attorney presents a paper that is not warranted by existing law, whose factual contentions lack evidentiary support, or that is presented for an improper purpose such as delay. (Code Civ. Proc., § 128.7(b).) Sanctions are proper where the filing is one that no reasonable attorney would consider legally tenable, or that is frivolous or filed in bad faith. (Peake v. Underwood (2014) 227 Cal.App.4th 428, 440.)

Section 128.7's safe-harbor provision requires that the motion be served at least 21 days before filing, during which the offending paper may be withdrawn. (§ 128.7, subd. (c)(1).)

DISCUSSION

Plaintiff

seeks imposition of sanctions against Defendant, in an amount sufficient to deter repetition, on the grounds that Defendant's now denied Motion for Judgment on the Pleadings was made based on contradicting factual assertions. (Mot., p. 2.) Plaintiff argues that the motion for judgment on the pleadings alleges that Defendant operates a purely online business with no physical storefront or brick-and-mortar place of public accommodation. (Mot., p. 9) In contradiction, Plaintiff highlights that Defendant's responses to requests for Admission (RPDs) obtained via discovery admit that Defendant operates a physical and public place of accommodation. (Ibid.) Plaintiff argues that both statements cannot be true, so Defendant either violated section 128.7(b)(3) by presenting RPD responses without factual support or presenting the motion for judgment on the pleadings based on a lack of evidentiary support. (Mot., p. 10.) Plaintiff argues that a reasonable attorney would have recognized this inconsistency before presenting these statements to the Court. (Ibid.) Further, Plaintiff argues that the motion for judgment on the pleadings was presented for an improper purpose based on frivolous legal theory. (Mot., p. 13.)

In opposition, Defendant argues that Plaintiff attempts to make every unsuccessful motion sanctionable. (Opp., p. 2.) Defendant argues that it admitted to operating a physical wholesale facility in San Diego but denies that it operates a consumer-retail storefront in Rowland Heights or elsewhere. (Ibid.) Defendant argues that this distinction matters and allows both assertions to be true. (Opp., p. 4.) Further, Defendant argues that the motion for judgment on the pleadings was not made for improper purpose or based on frivolous legal theory because it turned on a factual dispute for what is deemed a place of public accommodation. (Opp., p. 5.) Thus, Defendant argues that Plaintiff has not shown sanctionable conduct. (Opp., p. 8.)

In reply, Plaintiff argues that Defendant does not address the irreconcilable sworn statements. (Reply, p. 2.) Plaintiff cites the Court's August 7, 2026, Minute Order which identifies this contradiction. (Ibid.) Further, Plaintiff argues that Defendant's explanation for the inconsistency confirms the sanctionable violation rather than curing it. (Reply, p. 3.) Plaintiff reiterates that the motion for judgment on the pleadings was frivolous and made for an improper purpose. (Reply, pp. 5-6.)

Here, the Court does not find that the alleged

contradictory statements, or the filing of the motion for judgment on the pleadings, justify such sanctions. Also, the Court will not rehash the motion for judgment on the pleadings. The Court in *Marriage of Flaherty* found that filings should “be held to be frivolous only when it is prosecuted for an improper motive -- to harass the respondent or delay the effect of an adverse judgment -- or when it indisputably has no merit” (*In re Marriage of Flaherty* (1982) 31 Cal.3d 637, 650.) Despite any criticism Plaintiff may have of Defendant’s litigation approach or strategy, the Court does not find Defendant’s motion for judgment on the pleadings frivolous or based on improper purpose. Further, the Court is persuaded by Defendant’s explanation of nuance between the responses to RPDs and arguments made in the motion for judgment on the pleadings. Defendant can both admit to operating a physical facility and deny operating a place of public accommodation open to the public.

Accordingly, the motion for sanctions is DENIED.

CONCLUSION
AND ORDER

Plaintiff Perla Mageno’s motion for sanctions is DENIED.

MOVING PARTY is to give notice.